

**FICTIONAL TRAINING ARTIFACT — NOT FILED — NOT LEGAL
ADVICE**

UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF VIRGINIA
Richmond Division — Civil Action No. SYN-EDVA-25-CV-0412

BLUE CEDAR'S REPLY IN SUPPORT OF SUMMARY JUDGMENT

Filed: November 17, 2025

The late Wynn declaration is separately disputed

Benton served Tessa Wynn's November 3 declaration after fact discovery closed and after Blue Cedar filed its motion. The declaration presents a materially different subject from the duties, metrics, score, continuity exception, and retained assignments identified for Wynn in the parties' disclosures and examined at her deposition. Blue Cedar has therefore filed a separate motion addressing whether Benton may use that submission. This reply does not ask the Court to decide that procedural question indirectly through the merits briefing.

For clarity, Blue Cedar's summary-judgment argument rests on the record developed by the October 10 discovery close and does not rely on the new declaration. The declaration cannot be treated as an undisputed fact merely because Benton attached it to an opposition, and Blue Cedar preserves its objections under Rules 26 and 37. If the Court considers only the properly developed evidence, Benton still cannot connect Pike's approval to retaliation. If the Court later permits some use, Blue Cedar requests the opportunity and discovery appropriate to the scope allowed. The present reply addresses the motion on the admitted record without predicting the separate ruling.

Knowledge and timing do not prove motive

Blue Cedar acknowledges that Pike knew Benton had made an internal assignment complaint and that an agency matter existed before he approved B-7. The company no longer relies on a complete lack of awareness. That concession narrows the dispute, but it does not establish why Pike chose the approved combination. Title VII requires proof that protected activity made the difference, not simply that a decisionmaker possessed information about it.

The six-week interval is likewise relevant but incomplete. Between notice and termination, finance supplied the target, human resources preserved the baseline, operations reviewed four managers, the group held dated calibration sessions, Solis prepared a variance audit, and Pike selected a model exceeding the required savings. Benton identifies no contemporaneous direction from Pike to place protected activity in a score or to choose Benton because she complained.

Benton says the sequence permits an inference when combined with other evidence. The other evidence must still reasonably show falsity or retaliatory use. Where the intervening records document a genuine restructuring and identify the criteria actually discussed, temporal proximity cannot alone convert every disputed calibration judgment into proof of unlawful motive.

Comparator differences were operational, not invented

Benton accurately notes that the four managers shared core functions. Blue Cedar does not argue that a different job title or department makes comparison impossible. It argues that the record contains current assignments relevant to the written criteria: Wynn's Lantern transition, Ibarra's western travel availability, Keene's automation responsibility, and Benton's combination of Northline, Oriole, and remediation review.

The differences were not created after litigation began. Transition schedules, the February 27 travel message, the script-library records, and the manager role matrix predate the final selection. Benton disputes how they were weighted. She points out that her transitions ran later, her completed travel was greater, and the scripts could be accessed by others. Those facts support an alternative operational judgment, not a finding that Blue Cedar fabricated the underlying assignments.

Nor does the pattern of three downward adjustments and retained-manager credits compel a retaliatory inference. A reduction-in-force calibration exists to distinguish employees whose base duties overlap. The changes were logged and tied to proposed post-RIF coverage. The Court may question their wisdom without inferring that protected activity, rather than the identified coverage considerations, caused the final choice.

Qualifying alternatives involved different coverage burdens

Benton emphasizes three alternatives that reached the savings target after including the \$14,600 archive-hosting consolidation. Blue Cedar has admitted those totals and does not claim B-7 was the only mathematical solution. The alternatives are relevant because they show Pike made a discretionary choice. They do not show that his coverage explanation was false.

Because all three models retained Benton, none called for moving her Northline, Oriole, or remediation-quality portfolio. C-4's only reassignment was Wynn's still-active Lantern work. D-2's only reassignment was Ibarra's planned western travel. E-3 required moving only Keene's automation and reporting-script responsibilities. Operations assigned the rejection labels continuity, summer travel coverage, and automation support in that order. B-7, by contrast, removed Benton and spread her functions among Wynn, Ibarra, Keene, and Voss.

Benton responds that all transfers were possible. Possibility is why the workbook could model the alternatives; it does not establish equivalence. Pike testified that he preferred B-7's coverage allocation. No evidence shows finance secretly required Benton, and none is needed for Blue Cedar's position. The issue is whether the stated operational preference was honestly held, not whether a different decisionmaker could have selected another target-reaching combination.

The explanation remained savings and continuity

The March 24 letter stated that Blue Cedar needed payroll savings and would redistribute Benton's management responsibilities. Earlier files recorded salary, transition dates, completion, availability, uniqueness, and the proposed recipients of her work. The April agency response and Pike's July interview described completion, availability, and client confidence in more detail. Those subjects correspond to criteria and records already present before the termination.

Benton argues that the added detail suggests a shifting rationale. But no account changed the decision into discipline, denied the existence of the target, or asserted that her work ceased. Voss consistently described Benton as a satisfactory performer. Pike's reference to client confidence concerned continuity, not a previously undisclosed complaint about poor service. The post-RIF assignments followed the transfer plan: Wynn took Northline, Ibarra took Oriole, Keene took remediation review, and Voss took the quality meeting.

A factfinder may consider wording changes, but Foster does not make every fuller explanation a triable contradiction. The contemporaneous workbook contains the same categories later used to describe the decision. On the admitted record, the explanations are cumulative descriptions of one cost-and-coverage rationale rather than mutually exclusive reasons.

The admitted record does not establish but-for causation

Benton has assembled facts that justify careful review: protected activity, Pike's awareness, close timing, favorable source metrics, calibration changes, comparator credits, qualifying alternatives, continuing work, and later explanatory detail. Blue Cedar does not ask the Court to ignore that collection. It asks whether the collection reasonably supports the ultimate finding that retaliation caused her selection.

The answer remains no. The record also establishes a real target, five filled-position removals, two vacancy eliminations, a preserved scoring process, contemporaneous coverage differences, a variance audit, and implementation of the selected transfer plan. Benton supplies no admitted statement by Pike, no protected-activity scoring field, and no evidence that the other reductions were a pretextual screen created for her. The competing weights she proposes do not show that Pike disbelieved the reasons he recorded.

Blue Cedar therefore requests judgment on the sole retaliation claim. The Court can reach that result without weighing witness credibility, treating timing as irrelevant, or endorsing every calibration choice. It need only conclude that the admitted evidence does not permit a reasonable finding of but-for retaliation under Rule 56 and Foster.